

CHAPTER 8

LOCATING EASEMENTS AND REVERSIONS

8.1 INTRODUCTION

In Chapter 1—History and Concept of Boundaries, it was shown that land is quite unique in that it is composed of multiple interests that may be likened to a “bundle of straws or rights” that are being held together by what we refer to as title. Each of these rights or interests has its own boundaries, which may overlap other rights or interests sometimes held by other people.

In the scheme of boundary issues, the aspects of easement boundaries play an important part in the surveyor’s workday.

One of these individual rights or interests is that of easements for numerous purposes. As depicted earlier, an easement is what English law has defined as an incorporeal *hereditament*, or nonpossessory estate, or only a right to use an entire parcel of land or a portion of the parent parcel for a specific purpose or purposes.

Easements, in general, are unique, in that by their very nature they are an estate in land that does not and will not permit possession of a person’s property. It does give the easement holder the right to use the property up to and including the boundaries described in the respective documents.

For the most part, people look upon an easement only as the right of ingress or egress for road purposes, or, in lay terms, the right to *come and go* across a parcel of land. This may be the major purpose of easements, but this nonpossessory right has been used in a multitude of other ways. Many agencies, utilities, and individuals obtain nonpossessory rights for many reasons and purposes.

Easements were seldom mentioned in either early English common law or American law. Early Roman history indicates that the Romans had organized roads from the early fourth century B.C.E. Records indicating ownership or possessors

along the Via Appia indicated that the Roman legions obtained rights of passage over private lands for movement of their armies. These same roads or highways¹ were also used by travelers going from Rome to Egypt and the Holy Land and to other portions of the Roman Empire. Maps have been recovered depicting a system of planned roads throughout the Roman Empire, including England. Today in Great Britain, one can examine the British Ordinance topographic quadrangle maps and visit abandoned Roman roads still visible and indicated on both ancient Roman maps and modern maps.

The Roman law relative to servitudes had a strong influence on the English law in this area of easements. In Roman law, servitudes were considered as a division of *jura in re aliena*, or real rights that one landowner may have in the property of another. The Romans considered these servitudes to be of two classes: personal and praedial. The *personal* were considered to be individual rights lasting, at most, the lifetime of the landowner; the *praedial* were rights that permitted one to use the adjoining land of another in certain ways.

Easements and their reversions are unique in the area of boundaries. When comparing litigation for boundaries of land parcels and litigation over easement problems, recent research indicates a 10:1 relationship, in that there is 10 times more litigation over easements than over land boundary problems. Personal research and observations of nearly 2000 appeal cases in the area of easements indicate that nearly 50 percent are reversed on appeal. A valid easement or right-of-way has boundaries that may be permanent or may be measured in a time frame. Easement boundaries are created in special ways not inconsistent with regular property boundaries, and their retracement may also cause the retracing surveyor serious problems. Along with the survey problems associated with easement boundary locations and retracements, a surveyor may be requested to assist in the determination of reversionary rights.

A *reversion* or *reversionary right* is a right defined by law that permits an adjacent landowner to either gain or regain certain property rights of land located within the vacated easement. In a vacated easement, old boundary lines are revived once the reversion takes place. A surveyor working with easements will find this area consuming a large amount of litigation in the courts, and it may become an area of conflict in the everyday surveying of a parcel of land and its boundaries.

The essential qualities of all true easements are as follows:

1. They are incorporeal and may or may not be inherited, depending on the nature.
2. They are imposed on corporeal property (*in rem*) and not against the person (*in personam*).
3. They confer no rights to profits from the property.
4. They are imposed for the benefit of corporeal property, normally a second parcel, usually contiguous.
5. There must be two tenements, the *dominant*, to which the right attaches, and the *servient*, upon which the burden attaches.
6. Usually, a true easement is nonpossessive in that the holder of the easement may use it but not “possess” it.

The following principles are discussed in this chapter:

- PRINCIPLE 1. A description of a land parcel may contain more than one boundary description within the boundaries of the parent parcel. The law recognizes that rights granted may be stacked one on the other.
- PRINCIPLE 2. An easement is an incorporeal, nonpossessory right or hereditament of a party to use the property of another person for a specific purpose or purposes.
- PRINCIPLE 3. The boundaries of an easement may be described in many ways. There is no single, absolute way to describe an easement.
- PRINCIPLE 4. In an easement, a grantor can grant only those rights that the landowner has, and no more.
- PRINCIPLE 5. Whenever an easement is granted for a specific purpose, the fee title to the land encumbered by the easement remains with the grantors of the easement, their heirs, or assigns.
- PRINCIPLE 6. Between private parties there is a presumption that fee simple title is intended to be granted in a deed to real property unless it appears in the writings that a lesser estate was intended. Unless there is a statement to the contrary in the conveyance or a statute otherwise, the presumption is that the public acquires an easement only in highways.
- PRINCIPLE 7. All easements have three basic descriptions that may have to be created or retraced.
- PRINCIPLE 8. A surveyor may have to fully understand easement descriptions in order to locate and describe a new easement and to relocate existing easements.
- PRINCIPLE 9. If there is a question of whether an easement is an incorporeal hereditament or a fee conveyance, this may be a question of fact and law, but it does not affect the location of the boundaries. That is a survey question.
- PRINCIPLE 10. A metes and bounds description with a road as a boundary must be written to positively exclude the road; otherwise, in those cases where the grantor owns the bed of the road, it will be presumed that the conveyance is intended to convey title to the center of the road, subject only to the public easement.
- PRINCIPLE 11. Ownership lines in a street are determined by the original ownership lines as they existed before the easement or dedication of the road. A private conveyance of land abutting on a road, the fee to which belongs to the adjoining proprietors, is interpreted, if possible, to pass fee title to the centerline thereof; otherwise, the contrary must be shown.
- PRINCIPLE 12. Unless a deed or map that created the easement or dedication indicates otherwise, reversion rights extend from the street termini of the property lines to the centerline or thread of the street in a direction that is at right angles to the centerline of the street.

- PRINCIPLE 13. Reversion rights of a lot in the middle of a block extend radially to the centerline of the street.
- PRINCIPLE 14. Reversion rights of a lot adjoining a subdivision boundary extend along the boundary line of the subdivision and cannot extend beyond the boundary line.
- PRINCIPLE 15. Reversion rights at an angle point in a road extend on the bisection of the angle.
- PRINCIPLE 16. By law and by definition, an easement is a nonpossessory right to use the property of another person.
- PRINCIPLE 17. The creating words become important when there is a question as to what was created, what was vacated, and what was reverted to the landowners.
- PRINCIPLE 18. Easements boundaries may be either surface, subsurface, or aerial. The location may restrict the use by the servient titleholder.

8.2 RIGHTS GRANTED

Principle 1. *A description of a land parcel may contain more than one boundary description within the boundaries of the parent parcel. The law recognizes that rights granted may be stacked on another.*

A major problem lawyers, surveyors, and courts must address for solutions are situations where landowners may grant multiple easements over the same parcel and including the same property, with multiple descriptions. In conducting research for a retracement, the retracing surveyor may find easements for numerous purposes: surface easements for roads and power lines; subsurface for utility sewers and water lines; aerial for communication, wind, and sunlight. Some of these may be adequately described and some may be for cross-country blanket pipelines. Each will carry with it a description of its boundaries; all may be conflicting with each other.

Principle 2. *An easement is an incorporeal, nonpossessory right or hereditament of a party to use the property of another person for a specific purpose or purposes.*

There are numerous definitions of easements. Easements have been described by courts in several ways:

A right of one owner of a parcel of land, by reason of such ownership, to use the land of another for a special purpose, not inconsistent with the general in the owner.²

Or

A privilege, service or convenience which one neighbor has of another, by prescription, grant, or necessary implication and without profit; has a way over his land, a gate-way, watercourse, and the like.³

Or

A liberty, privilege, or advantage without profit, which the owner of one parcel of land may have in the lands of another.⁴

Or

An interest in land created by grant or agreement, express or implied, which confers right upon holder thereof to some profit, benefit, dominion, enjoyment or lawful use out of or over estate of another; thus, holder of easement falls within scope of generic term “owner.”⁵

A more academic definition is

a privilege which the owner of one adjacent tenement hath of another, existing in respect of their several tenements, by which that owner against whose tenement the privilege exists is obliged to suffer or not do something on or in regard to his own land for the advantage of him in whose land the privilege exists.⁶

To look at these definitions and to put them into ordinary words, an easement can be defined as follows: A true easement is a nonpossessory right of one landowner. (dominant parcel) to use the land of an adjacent landowner (servient parcel) for a specific purpose or purposes. All easements, regardless of what purpose or purposes the use is for, are just one of those straws that go to make up the “bundle of rights” identified in English common law. The owner of the easement has only a right to use the property, not to possess the property.⁷

Principle 3. *The boundaries of an easement may be described in many ways. There is no single, absolute way to describe an easement.*

A surveyor who examined documents that purport to create easements would see a multitude of descriptions. In many instances, the landowners must resort to litigation to determine such questions as: Is an easement present? or Is it an easement? or What is the extent of the easement? If the parties find that ambiguities exist in an easement, such as the location or the extent or any other question, the courts will try to make the easement effective and will fill in the missing terms. That is not what the parties should seek. The description of the easement and its extent should be sufficient so that a court of law should not have to “fill in any blanks.”

Parties will try to create easements by calling for easements described as “for road purposes” or an easement 40 feet wide across the SW ¼ of the SE ¼ of Section 10, or some other description. These *blanket easements* encumber the entire parcel until it is placed on the ground, and the location of the pipe or transmission line then fixes the location in place. With such a description, the dominant easement holder is permitted to place the utility at any location within the entire 40-acre parcel.

The most common form of easements are *centerline easements*, in which the parcel that is the subject of the easement is described by a single line, described by

bearings and distances, and the easement is described as “an easement 25 in width,” or “25 feet on each side,” or “25 feet on either side,” perpendicular to the line described. In this situation, the extent of the easement may involve serious questions of legal interpretation as to any gaps or overlaps, for example, and possibly as to whether it is a 25-foot or 50-foot easement.

Perhaps the most positive description of an easement is that of a *perimeter easement*, in which the entire easement is described from a point of beginning to a point of commencement and with courses enclosing the entire parcel that will be subject to the easement. The description takes on all of the legal and technical aspects of any boundary line. Some people try to create an easement simply by referring to “an easement across the road on my property.” The various forms of descriptions are discussed later.

Principle 4. *In an easement, a grantor can grant only those rights that the landowner has, and no more.*

This principle takes us back to the *bundle of rights*. That is, if the freehold does not have that one particular stick in the bundle of rights, the titleholder cannot grant or convey it. For instance, if the person has possession of the property under a life estate, the life estate holder cannot encumber the property beyond his or her tenure, that is, the person’s lifetime. A life estate holder *can* encumber the entire parcel by granting an easement, but the easement terminates upon the death of the holder of the life estate. The person seeking the easement must obtain the easement from the life estate holder as well as the remainderman to have an easement that extends beyond the life of the party who granted it. If a party has less than a 100 percent interest in a parcel, that person can give an easement, but the other party or parties in interest can bring an action to have the easement declared void or seek compensation for their interest.

In many states, the minimum technical standards require surveyors to conduct sufficient research to be able to locate with certainty all recorded easements. This usually requires the surveyor to conduct research to a sufficient degree to be able to locate any and all lines. This requirement does not place any burden on the creating or retracing surveyor to determine the legality of the easement.

As might be expected, easement boundaries should be identified with certainty and with specific dimensions. In reading these documents, information may be revealed depicting the amount or type of interest the grantor had. Research will often indicate that the grantor had fee title by a warranty or quitclaim deed. It may also be found that the grantor was occupying the land under a life estate. In the latter situation, any easement granted can be valid only as long as the life estate is valid.

Principle 5. *Whenever an easement is granted for a specific purpose, the fee title to the land encumbered by the easement remains with the grantors of the easement, their heirs, or assigns.*

Although this principle is easy to apply, there are a number of land conveyances made after the original that may fail to make reference to the original easement.

Questions may arise as to who has ownership of reversionary rights, fee rights, and various other rights. If the surveyor discovers such a document during the course of investigating the records, it is imperative that the client be notified. In the event that the holder of a life estate grants an easement, the grantee may find that a remainderman has a legal right to the easement rights, and they may have to be repurchased. In this situation, an easement is either in gross or appurtenant. In an easement appurtenant, the easement attaches to the land encumbered and transfers when the land is transferred. If it is an easement in gross, the easement is personal (i.e., to an individual) and the presumption is that the easement terminates, but if the easement is for commercial purposes, the easement transfers or may be assigned.

8.3 FEE TITLE OR EASEMENT RIGHT

Principle 6. *Between private parties there is a presumption that fee simple title is intended to be granted in a deed to real property unless it appears in the writings that a lesser estate was intended. Unless there is a statement to the contrary in the conveyance or a statute otherwise, the presumption is that the public acquires an easement only in highways.*

Between private parties, when the word *easement* is omitted from a description that was intended to be an easement, the courts may rule that a fee title passed. A description of “a 30-foot strip of land for road purposes” may pass fee title but may be subject to a road easement. The wording “reserving the west 25 feet for road purposes” may or may not create an easement. States are divided on this issue. The wording may create a reservation of a 25-foot fee title, but subject to an easement for a road. When an easement description is written, if in the future there could be a possibility of confusion as to what the parties intended, the scriveners of the document could possibly eliminate any problems by using the habendum clause of the description to its fullest intended use. This clause is usually found at the end of the boundary description to clear up or explain any possible ambiguities that may exist at the present or in the future.

When a government agency takes an easement for highway purposes, an easement right is presumed.⁸ However, some statutes may provide for the taking of a fee for land appropriated for street purposes. Some states provide that all dedicated streets created by plat result in a fee simple conveyance, and the public body retains fee title to the streets on vacation of the streets.⁹

Although surveyors should not give clients legal advice, surveyors must know what their respective state laws are; for example, all interstate highways are fee conveyances, and in California the state requires fee title to its freeways, and some states have passed maintenance statutes. The surveyor may find that precolonial law becomes important. In applying Dutch law to ownership in early New York grants, the surveyor will find that the beds of streets vested from the Dutch are owned in fee by the state of New York. When the Dutch vested power to the British, this ceased and did not apply.¹⁰

8.4 THREE EASEMENT DESCRIPTIONS AND THREE BOUNDARIES

Principle 7. *All easements have three basic descriptions that may have to be created or retraced.*

With any easement, three separate and distinct parcel descriptions and their boundaries are important to the identification and location of the easement. These three descriptions are as follows:

1. Description of the dominant parcel when one exists
2. Description of the servient parcel(s)
3. Description of the boundaries of the easement proper

As a matter of law, all states in the Union hold that if a description in a deed is so ambiguous as to preclude its being able to be located by a competent surveyor, that deed may be void for lack of certainty of description. There may occur a particular situation when a surveyor fails to prepare an adequate description for the easement or that one of the parcels is so ambiguous that it cannot be located with certainty; then the easement may be void.

8.5 OWNERSHIP OF THE BED OF EASEMENTS

Who is entitled to the land under an abandoned road, power line, or railroad? If the easement was a fee conveyance, there is no reversion and the grantee of the original easement has ownership; but if the conveyance was considered an easement with reversionary rights, the original land taken for the easement reverts to the original grantor, his heirs, or assigns. Usually, reversionary rights are returned to the original owners and to the original boundaries that were in place at the time the easement was created.

In an actual situation, the state of Florida obtained an easement by prescription. Subsequently, to perfect the prescriptive easement, the state purchased, in fee, two 10-foot strips of land on each side of the prescriptive easement. Then oil was discovered. The original landowners sought the oil royalties as their right of ownership of the fee underlying the road. The court held that since the state owned two 10-foot strips of land, in fee, on each side of the road, upon abandonment, the prescriptive road would go to the adjacent fee owners, now the state, and as such the state was entitled to the mineral interests under the road.

The New Hampshire Supreme Court stated in the case of *Duchesnaye v. Silva* that in order to exclude the bed of a street (or highway), the declaration must be *clear and unequivocal*.¹¹

8.6 SURVEYOR'S RESPONSIBILITY AS TO EASEMENTS

Principle 8. *A surveyor may have to fully understand easement descriptions in order to locate and describe a new easement and to relocate existing easements.*

It is accepted, by fact and law, that in order to have an effective easement that is created by grant, there must be a valid easement description. If it is determined that the easement description is defective, in that it does not adequately describe the easement lines, the easement may be void for lack of certainty of description. But it is strictly a question of law, to be determined by the court, whether the description is void. The surveyor can only determine whether the easement can be surveyed. Whether the deed contains a valid description is a question of fact, and the surveyor must determine whether it can or cannot be surveyed. The court is the only authority to determine whether the description is valid or void. This responsibility of the description is placed on the surveyor in two instances: when the surveyor conducts a survey to create and identify the boundaries of a new easement and when the surveyor is asked to locate the boundaries of an easement that is described in a prior document (under extreme conditions, the surveyor may be asked to survey possession lines for prescriptive easements).

8.7 REQUIREMENTS FOR LOCATING EASEMENTS

One of the responsibilities of both creating and a retracing surveyors is the area of easements. As pointed out earlier, the multiple land interests have one common element; that is, they all have exterior boundaries that may complement other boundaries or conflict with them.

Since easements are an interest in land, like all other interests in land there are certain minimum requirements or standards for locating them. The American Right of Way Association has a manual of practice and a set of standards, and several states have identified standards as accepted in case law. These requirements are tantamount to performing to a standard of boundary line surveying. A court has ascertained that a border of a right-of-way is a boundary line like any other.¹² The respondent argued that requiring a land user to determine exactly where the right-of-way lines are located places too great a burden on the land user. The court responded by stating that a landowner or occupier is under an obligation to know the boundaries of the property. Many of these requirements are not mandatory for the surveyor either creating them or retracing the boundaries. As such, the landowner may be completely oblivious to the product that was received.

Since an easement boundary is like any other boundary, the surveyor's duty in a retracement is to locate the boundary where the original surveyor located it.

The Wisconsin court illustrated this very well, citing two cases. In the later case, the court held that the corner of a city block involved in the determination of boundaries is where the original surveyor of the plat fixed it by the setting of a stake or other monument, regardless of where present surveys may fix the centerline of a street, and regardless of inaccuracies in his measurements judged by such centerline. It cited an earlier case, wherein it was stated that the east line of the street was where the original surveyor placed it, not where it should be according to resurveys or subsequent surveys; that subsequent surveys are worse than useless; and that they only serve to confuse, unless they agree with the original survey."¹³

In the California case of *People v. Covell*, the court dealt with a highway survey of 1872 done by the county surveyor and approved by the board of supervisors.

A later survey was done by a deputy county surveyor, who concluded that one of the abutting parcels encroached anywhere from 6 to 10 feet along the line of the highway. The court stated, in a previous case, “[I]t was sought by a later survey to move the lines established by a prior survey. This court held that whether accurate or inaccurate, the original survey granting and establishing certain rights, fixed the rights not only of the government, but of the landowners, and that the government, after establishing such a line and granting and conveying certain rights, possessed no power thereafter to change the course of that line.”¹⁴

Principle 9. *If there is a question of whether an easement is an incorporeal hereditament or a fee conveyance, this may be a question of fact and law, but it does not affect the location of the boundaries. That is a survey question.*

Easements are a question of fact and law. The meaning of and the legality of the words describing the easement are usually a question of law that is addressed by the court. The surveyor has no input into the legality of this area, but if there is a question of the surveying and descriptive aspects of the easement, which equates to a description and/or a boundary issue, which may be determined by the surveyor’s interpretation of the words and then the placement of these descriptive words on the ground as a survey, then the surveyor becomes intimately important and the surveyor’s opinion becomes important.

The court will determine the legality of the conveying document that created the easement, but when it comes to the locatability of and the location of the lines described in the description of the easement, this is strictly a survey or measurement question or a problem to be addressed by a surveyor.

8.8 CENTERLINE PRESUMPTION

Principle 10. *A metes and bounds description with a road as a boundary must be written to positively exclude the road; otherwise, in those cases where the grantor owns the bed of the road, it will be presumed that the conveyance intended to convey title to the center of the road, subject only to the public easement.*

When a surveyor writes a metes and bounds description that includes a road as a boundary, care should be taken to say what is intended. The interpretation of these descriptions creates a fruitful area for litigation. An owner of land bounded by a road or street is presumed to own to the center of the way, but the contrary may be shown. Such phrases as “along said road” do not exclude the road. “Along the east side of said road,” “the side line of said road,” “excepting the road,” and “excluding the road” are definite statements showing clear intent to exclude the road. In one situation when a landowner reserved a parcel “for road purposes,” it was held that the words did not create an easement. Unless the deed clearly states that the road is excluded, or clearly indicates so by its language, the conveyance is to the centerline of the road, provided that the grantor owns the bed of the road. Upon a reversion, questions may arise: What is the easement boundary line? Is it the paved surface or

the ditch line? Reference to a stake in the side line of a road, along with a distance that extends only to the side line of the road, does not exclude conveyance to the centerline because stakes are normally set on the side line whether or not the conveyance is to the centerline. For the grant to extend to the centerline, the grantor must have title that extends to the centerline.

Problems may occur when a person who has sold all the land adjoining a road is not interested in the maintenance or improvement of the road and should not have title interest in the road.

When improvements are made on a road and assessments are made, the costs are normally paid by the adjoining owners; however, if title to the road is vested in a third person, questions of the legality of the assessments arise. To circumvent such problems, most states have statutes in accordance with the principle stated here. Also the “strip and gore” doctrine may apply in determining who has title to the unusable strip. This area is quite complicated and many individuals who work in this do not have a full understanding of the law. The surveyor is put on notice that when working in this area he/she should “tread lightly.”

Descriptions cite running to the centerline or going along the side line. Some states, including several in the Midwest, state that “going along the side line” *excludes* the bed of the street. Most states do not hold that rule, stating that the presumption is to go to the centerline, for a variety of very good reasons, not the least of which is access upon vacation of the easement. Even a call for the side line is insufficient to exclude the fee under the street. Most hold the rule as articulated by New Hampshire.

Using a centerline as the definitive measurement from which to measure the width of an easement can be a serious problem to the retracing surveyor. There are no laws that require that the agency locate the road in the center of the easement area. The only requirement is that the facility should not be located off the easement proper. In a situation where a surveyor used the center of a 50-foot cleared pipeline easement to locate the easement proper, it was later determined that the actual pipe was offset some 20 feet from the centerline.

8.9 CONVEYANCES WITH PRIVATE WAY BOUNDARIES

If a surveyor is asked to interpret a description with the boundary or boundaries of the lands described as being along a public or private way (road), the surveyor can presume that the intention of the grantor of the deed was to convey a fee title to the center of the way if the grantor’s title extended that far.¹⁵ This does not apply if the words in the conveyance show a different intention. Like all other presumptions, the reverse is followed in some states, in that the presumption is when land is bounded by a private way, the fee is limited to the side line.¹⁶

There is a class of easements created by federal statute—namely, Section Line Easements. These are found in a few GLO states, Montana, Alaska, and Oklahoma being three of them. These were created as easements, 50 feet or 66 feet wide on all section lines. This type of easement cannot be identified until the section lines are

located, and thus the section lines become the controlling element of the easement description and location.

8.10 USE OF EASEMENTS

Because surveyors are frequently the first professionals to read the descriptions of easements, each surveyor should understand that an easement provides for limited use of the parcel. As the dominant tenant can use the servient tenant's land for the specific purposes identified in the easement, any uses inconsistent with the uses identified may terminate the easement. Both the creating surveyor and the retracing surveyor should understand what an easement will be used for and what uses are permitted. If, upon retracement, the surveyor discovers that the present use is inconsistent with the use permitted, that should be reported to the client or noted on the plat that is prepared.

In general, easements are strictly limited in use to the specific purpose(s) noted in the conveyance. An easement for road purposes does not necessarily carry with it the right to place utility lines, nor may it include parking. When preparing a description of the boundaries of an easement, the specific purposes(s) to which the proposed easement is to be put should be stated. State law may, by implication, permit one who grants an easement for a road to the public to extend the right to place utility lines either above or below the ground surface.

8.11 REVIVAL OF PUBLIC EASEMENTS

Once a public easement is extinguished, the boundaries of that easement legally cease to exist. If it is desirable to revive these boundaries, this must be done only by new acts through dedication or eminent domain. When considering public easements, the surveyor must be cautious, because a public easement may be extinguished, but private easement rights may still be valid, having been perfected prior or subsequent to the public easement.

8.12 CREATION OF EASEMENT BOUNDARIES

Many easement boundaries are created on paper—that is, without benefit of a survey or monumentation—or they may be created by law, which includes prescription, implication, or necessity. Many of these legally created easements have resulting boundaries that the courts create. This may include easements taken by eminent domain. This practice is dangerous in that a utility may be constructed off the easement described. The grantee may find it necessary to purchase additional easement rights. The importance of monumentation of boundaries of the easement cannot be overemphasized for legal and survey purposes. This is especially true in the condemnation of any easements, in that the land is condemned to the monuments set and

called for in the description and not to the actual survey. The professional surveyor should treat the boundaries of easements like any other boundaries: adequate monumentation based on a survey, with the corners, monuments, and lines called for in the description.

In conducting a proper survey for an easement, the surveyor should not attempt to shortcut identification of the parent, the servient parcel across which the easement is to be placed, or the dominant parcel, the parcel that will benefit from the easement or the description of the easement proper. It is important that surface boundaries of both dominant and servient parcels be identified, and that the easement itself be properly surveyed, monumented, and identified to a degree of certainty. In retracing an easement, the surveyor may find it necessary to survey the boundaries of all three descriptions.

Whenever a question arises as to who can use the easement and what uses will be permitted on the easement, one must look at the creating words. Basically, this is a legal question and not a survey question.

In an actual example now in the courts, referring to Figures 8.1 and 8.1a, the facts are as follows:

1. The original subdivision was created in 1957.
2. Lots were created and monuments set.
3. Easements were indicated on the plat.
4. The easement in question borders Lots 15, 16, 17, 18, 19 as indicated on the original plat.
5. The plat shows lot 15 to be riparian.

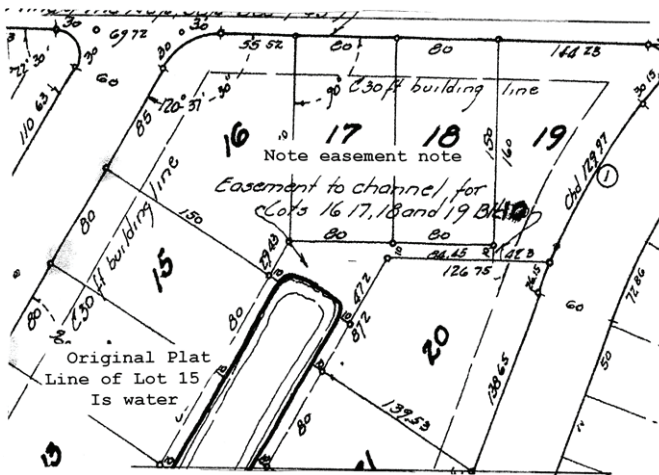


Figure 8.1 Original Subdivision Plat.

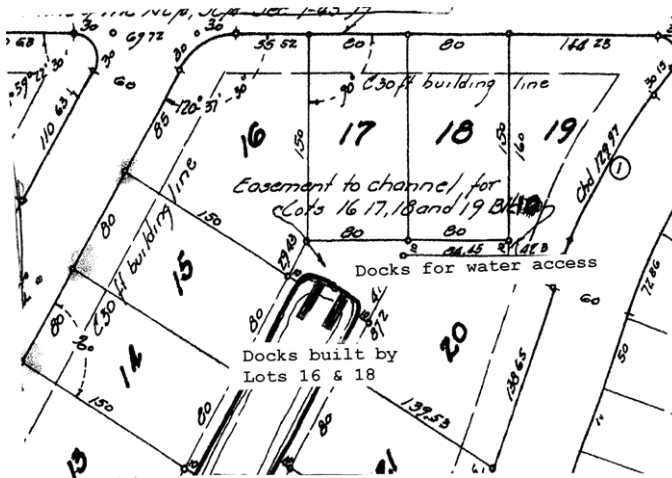


Figure 8.1a Plat Showing location of docks.

6. The same plat indicates that the easement was created to benefit Lots 15, 16, 17, 18, 19.
7. The easement states “Easement to channel for Lots 15, 16, 17, 18, 19.”

The Problem:

1. The owner of Lot 15 built a dock on his riparian land.
2. The owners of Lots 16 and 18, thinking the easement gave them the right to possess the easement proper, destroyed 15’s dock and built two new docks for their lots.
3. 15 called the police to stop them. He was put under a restraining order and was told 16 and 18 could build their docks on the channel and 15’s had to go.

The Questions to Be Answered in Court

1. What are the boundaries of the easement?
2. What are the boundaries of 15, 16, 17, 18, 19?
3. What uses can 16, 17, 18, 19 use in the easement. Can they build a dock?
4. What are 15’s boundaries?
5. Can 15 get compensated for the destruction of his dock?

For the court’s decision, see the conclusion statements.

After a two-day trial, the judge took only one day to render his decision. His decision was as follows: The boundary of the lots stopped at the iron pins that were indicated as being located 10 feet from the proposed canal. The lots did not have riparian boundaries at the canal, and, as such, the owners of the lots could not place docks on

the canal. The area of 10 feet between the canal and the court-adjudicated boundary markers was still owned by the original subdivision owners (a family trust that is being administered by a bank). The judge's prophetic comment that "someone still owns the strip" did not fully realize the impact of his decision. He stated that the owners of the easement rights, having a water boundary, could place docks in the canal.

Today, the situation is far from resolved. The former riparian owners have now petitioned the tax assessor for a reduction of their tax bills. The riparian lots carried an additional assessment charge, having water boundaries. The tax assessor refused, stating that the court order did not affect their determination of the boundaries for tax assessment purposes. The affected landowners have now filed suit against the tax assessor, with the same judge hearing the case.

8.13 DIVIDING PRIVATE STREET OWNERSHIP

Principle 11. *Ownership lines in a street are determined by the original ownership lines as they existed before the easement or dedication of the road. A private conveyance of land abutting on a road, the fee to which belongs to the adjoining proprietors, is interpreted, if possible, to pass fee title to the centerline thereof; otherwise, the contrary must be shown.*

It is recognized that many easements are described by metes and bounds descriptions. These descriptions often define or delineate the limits of private ownership. Although falling within the easement boundaries, the private ownership lines existed prior to the creation of the easement (see Figure 8.2). When it is found that the bounds within a street are given or identified, the surveyor should not assume the center of the street as the boundary. The presumption may not exist. Deeds

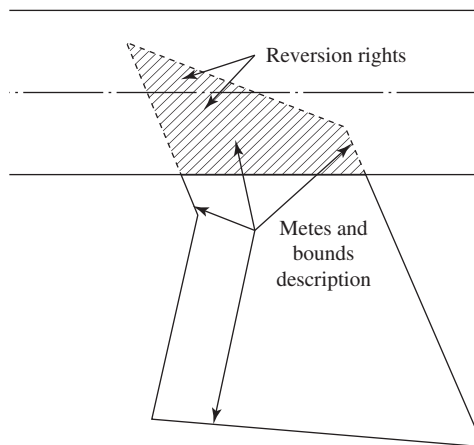


Figure 8.2 Reversion rights are determined by property lines that existed before dedication of the street.

may be found that expressly exclude the street, but unless they do, the inference is that the street is included. Before a surveyor can positively state how the division should be made, an investigation of the original lines must be made, and if it is determined that the owners on each side did not contribute equally to the easement, the presumption fails.

Surveyors often rely on subdivision maps to depict the extent of easements, but in most states these recorded maps will not show the extent of the private boundaries. Many presumptions are accepted with subdivision maps. Seldom does a deed for a lot mention the streets. It is usually assumed that the streets are included, to the centerline. Once all the lots in a subdivision are sold, the developer has no further interest in maintaining streets and utilities relative to maintenance, taxes, and so on, and the lot owners find that these items are assessed against their lots. This issue was raised in Maine when a developer indicated that the lots extended only to the respective side lines, not to the centerline of the streets.¹⁷

Surveyors will find that landowners will generally try any means in an attempt to keep from paying taxes and assessments. Texas landowners refused to pay their street assessments, using the theory that their metes and bounds descriptions followed along the street but did not include the street itself. The court found that deeds to a city lot that fronted on a street carried fee to the center of the street, unless there were clauses expressly declaring a contrary intention.¹⁸

8.14 WORDS USED IN CENTERLINE CONVEYANCES

The assumption that an owner owns to the centerline of a street can be overcome by definitive statements to the contrary. Such phrases as “along the side line of the street,” “exclusive of the street,” and “excepting the street” will prevent title in the bed of a street from passing. “Bounded by the highway,” “fronting on the highway,” “to and along the highway,” “with and by the highway,” and “in line of highway” can be construed to mean “along the centerline of the highway” and are usually taken in that light in the absence of other words of exclusion.

Descriptions of property on a highway and without words expressly including the highway, but with words granting an easement in the highway, are construed to indicate an intent not to convey the bed of the street. The fact that it was necessary to convey an easement indicates that the fee to the bed did not pass. As part of the initial research, surveyors should read the words for their exact meaning. Surveyors will often be called on to interpret the meanings in descriptions. A recent Florida decision stated as one of the findings that the only person, by virtue of education, training, and experience, capable of interpreting a description is a professional surveyor.¹⁹

8.15 APPORTIONING REVERSION RIGHTS

In instances where original boundaries were never identified, the complex problems of apportioning limits of landownership arising from the common-law presumption

that fee interest is conveyed to the centerline of the street lacks substantial documentation. This is particularly true in subdivisions where roads have curved and irregular street patterns. Several principles have been identified based on accepted practices, common sense, and an understanding of property rights. These are described in the sections that follow.

8.16 GENERAL PRINCIPLE OF REVERSION

Principle 12. *Unless a deed or map that created the easement or dedication indicates otherwise, reversion rights extend from the street termini of the property lines to the centerline or thread of the street in a direction that is at right angles to the centerline of the street.*

Figure 8.3 illustrates possible difficulties in applying this principle rigidly. This is depicted in lot 1.

When easement boundaries are created in writing or by a map, one should expect that the corners are monumented and that the lines were run on the ground prior to the creation of the description. However, this is not always true. Many easements are

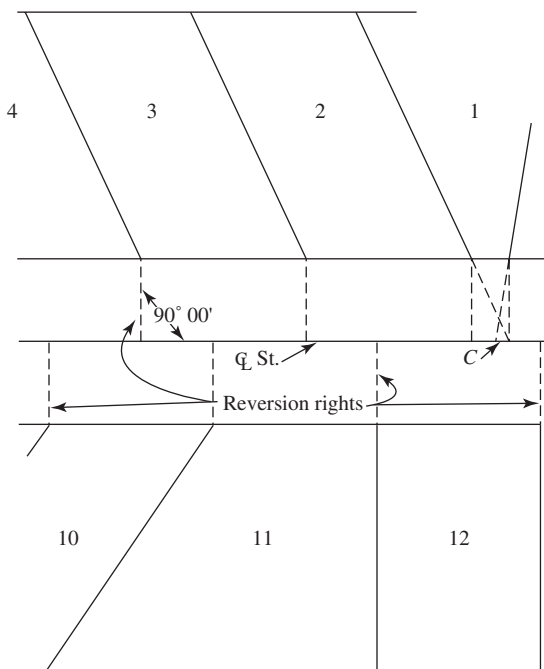


Figure 8.3 Reversion rights, unless otherwise indicated, are at right angles to the centerline of the street.

created at law, in that such doctrines as estoppel, acquiescence, agreement, implication, necessity, or adverse possession are used to create the easement, but then the boundaries become a matter of interpretation by the courts and in most instances do not contain definite lines or measurements.

In locating easement lines that are created by words, the words are to be followed, yet in attempting to locate those easement boundaries that are created under the law, the surveyor must have a complete understanding of the legal requirements and limitations for each state.

8.17 REVERSION RIGHTS OF A LOT ON A CURVED STREET

Principle 13. *Reversion rights of a lot in the middle of a block extend radially to the centerline of the street.*

Radial lines are at right angles to a tangent of a curve. If Principle 12 is interpreted broadly, this principle can be considered a special application of the former principle. Figure 8.4 illustrates the more common applications of the principle.

Lots adjoining a street intersection receive the lion's share of the land vacated, with just cause. Where a street is paved next to a corner, as in Figure 8.5, the corner lot must pay for the assessment of the intersection and is entitled to all the land that it pays assessments on. Where an intersection is curved, as shown in Figure 8.6, the reversion rights also extend to the centerline as determined by a curved line.

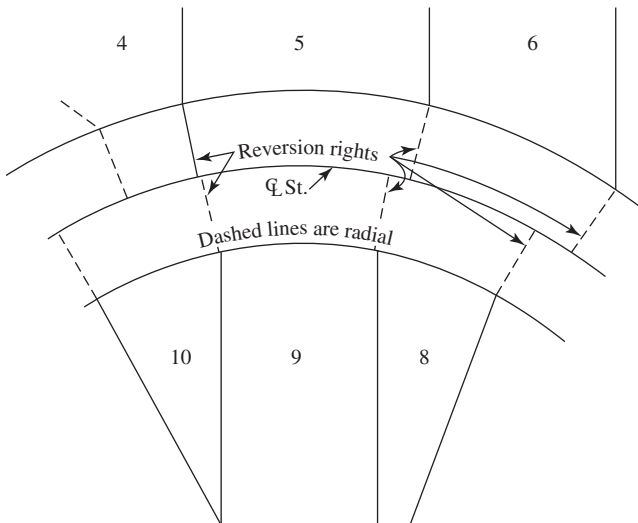


Figure 8.4 Reversion rights, unless otherwise indicated, are on radial lines.

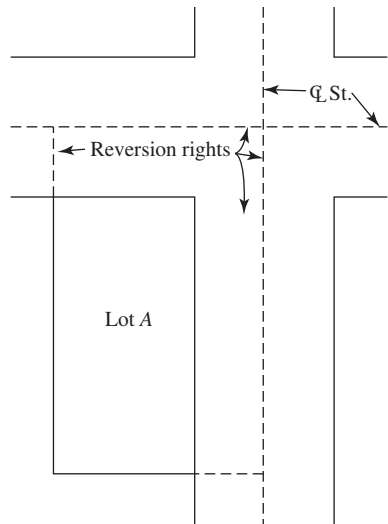


Figure 8.5 The corner lot pays for the assessment of the intersection.

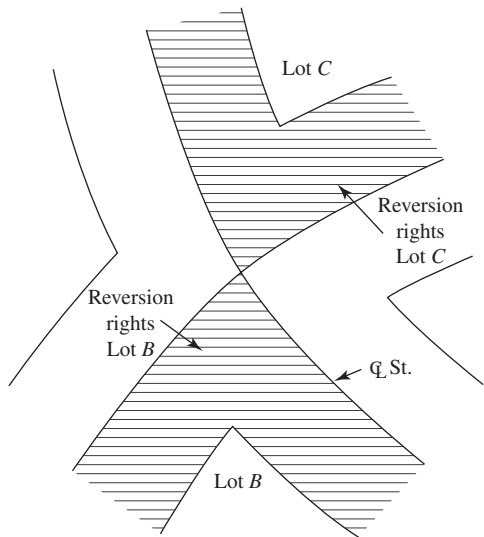


Figure 8.6 Reversion rights extend to the centerline in a curved intersection.

8.18 LOTS ADJOINING TWO SUBDIVISION BOUNDARIES

Principle 14. *Reversion rights of a lot adjoining a subdivision boundary extend along the boundary line of the subdivision and cannot extend beyond the boundary line.*

At times, a surveyor may have to identify a reversion boundary that is common to two separate and independent subdivisions. First, the senior and controlling line is

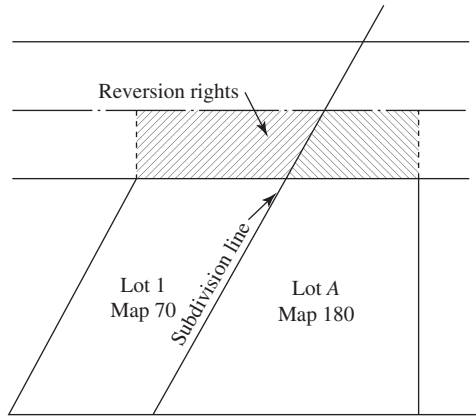


Figure 8.7 Relocating the common boundary line between two subdivisions.

the original boundary between the two separate subdivisions. This cannot be altered or interpreted in any other manner. Then the boundary lines of each separate lot within the respective subdivisions should be reidentified in accordance with these exterior lines.

In Figure 8.7, the surveyor will see that Lot 1 of Map 70 and Lot A of Map 180 represent two lots in two independent subdivisions. In relocating the common boundary line between the two subdivisions, the retracing surveyor may have to understand and apply junior-senior rights between the two subdivisions. After that is done, the separate lines of each lot are considered. After the subdivision line is located, the independent lots are located in accordance with accepted principles.

Under certain circumstances, lots adjoining a subdivision may have reversion rights extending beyond the centerline of the street. This is shown in Figure 8.8, where the street reverts to Lot 7 and the remaining lots accept different amounts.²⁰

The subdivision that lies on the north side of the street had no original title interest in the street adjacent to Lot 7. In a situation such as this, when an easement is vacated or terminated, the land must revert to the original grantor or to his or her heirs or assigns.

8.19 LOTS AT AN ANGLE POINT IN A ROAD

Principle 15. *Reversion rights at an angle point in a road extend on the bisection of the angle.*

The majority of these principles discussed in this chapter apply a presumption of equity in reversions. Principle 15 applies simplicity. In Figure 8.9, where an angle point is present, the basic application is to bisect the angle. Notice in Figure 8.9 that Lot 4 received a greater percentage of the land than any other lot, including Lot 1, even though Lot 1 and Lot 4 had equal frontage.

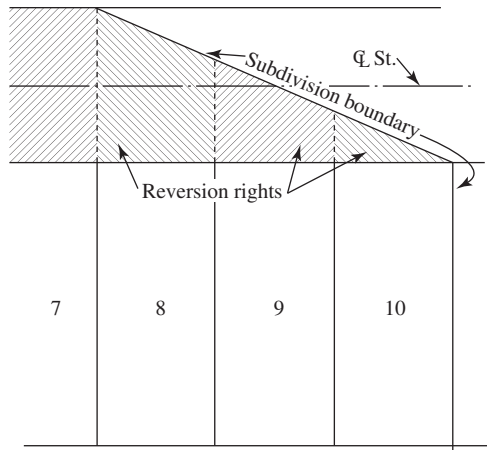


Figure 8.8 Reversion rights may sometimes extend beyond the centerline of the street.

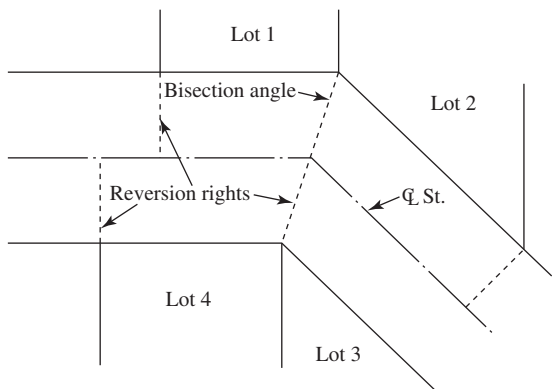


Figure 8.9 Reversion rights at angles in the street.

8.20 INDETERMINATE SITUATIONS

There may be instances in which the surveyor search for an answer to a reversion but finds no ready solution. In Figure 8.10 the reversion of area *X* would normally become attached to Lot 5. A Kentucky decision held that in considering an area such as *X*, equity should give it to the abutting owners who were entitled to road access. As an alternative solution, if it were determined that area *X* would be given to Lots 1, 2, 3, and 4, how would you divide them? This may be very frustrating!

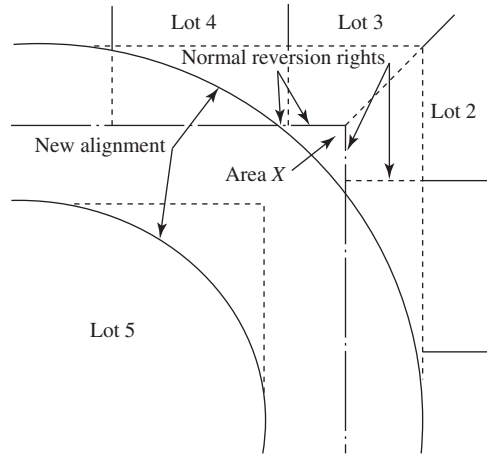


Figure 8.10 Indeterminate reversion situation.

8.21 EXCEPTIONS TO THE RULES OF APPORTIONMENT

Like all rules, there are always exceptions. In this section, we discuss some of those exceptions, simply to show that there are no complete certainties in this area. In Kansas²¹ and Oklahoma,²² the courts apply the rule of apportionment along the same principle as accretions in rivers and riparian principles. Not only is this recognized in case law, but statutes also address the problem.²³ The Oklahoma statute states:

Whenever any street, avenue, alley or lane shall be vacated, the same shall revert to the owners of the real estate thereto adjacent to each side, in proportion to the frontage of such real estate, except in cases where such street avenue, alley, or lane shall have been taken and appropriated to public use in a different proportion, in which case it shall revert to adjacent lots of real estate on proportion as it was taken from them.

Applying this statute in the states of Kansas and Oklahoma, the rule of apportionment is similar to that of accretions to rivers. This statute, in numerous cases, would be applied in accordance with the rules given in the preceding sections. In the case of a curve (Figure 8.4), the frontage of all lots remains in proportion to the new frontage at the centerline of the street, provided that radial lines are used as shown. In Figure 8.11, b is to B as c is to C , an exact proportion. But troubles ensue if the principle is adhered to strictly, at the termination of curves and at irregular boundary lines of the subdivision, as shown in Figure 8.8.

The proportion g is to G as f is to F as e is to E is exact. Also, d is to D as c is to C as b is to B as a is to A . But d is to D as e is to E is not a proportion. Difficulty in applying the foregoing statute is encountered at every intersection. How will Lot 10 receive its share of the vacated street? The simple method of obviating such difficulties is to indicate on the subdivision map being filed the intended reversion rights of

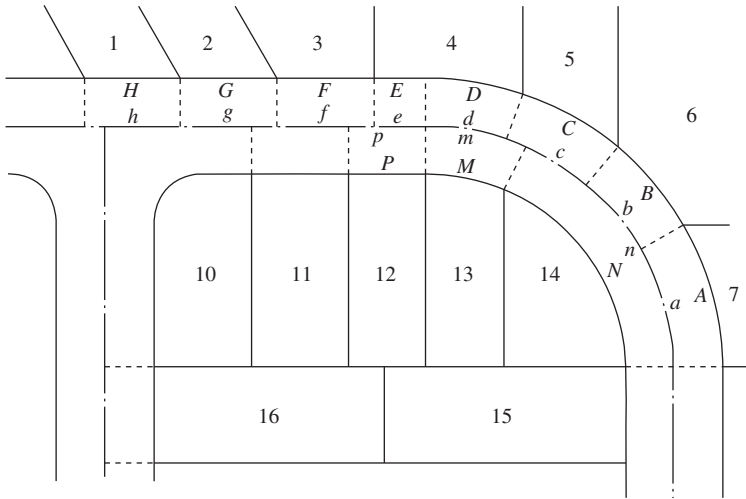


Figure 8.11 Indicating intended reversion rights on a subdivision map.

the adjoining lots. If the dashed lines shown in Figure 8.11 were included as part of the original map, no doubt could exist.

In the state of Washington, a street in the tidelands was vacated and the court commented: “We think these lands must be allotted the same portion of the vacated streets that they would be in other platted lands, the lateral lot lines to be extended straight from their former property line to the center line of the vacated street.”²⁴

8.22 DESCRIBING VACATED STREETS AND EASEMENTS

When a street within a subdivision is conveyed, it is presumed that title in the deed is to the centerline of the street. What, then, is the answer when the street is vacated? Apparently, after a street is vacated, the vacated portion of the street must be described with certainty specifically and positively before it can be conveyed. A recommended description would be: “All of Lot 1, together with the vacated portion of Grape Street adjoining Lot 1.”

In a Minnesota decision, the court wrote:

A conveyance of land bounded on an existing highway vests in the grantee the fee to the center of the highway, solely because the court presumes that such is the intention of the parties to the instrument. If a deed of conveyance to land bordering on the highway carries title to the center of the highway, solely because of this presumption, then there would seem to be no escape from the logical conclusion that when the facts which give rise to the presumption cease to exist, the presumption also falls to the ground.²⁵

When the street ceases to exist, the reason for the presumption ceases, and the portion in the vacated street must be included in a description in order to convey it.

Principle 16. *By law and by definition, an easement is a nonpossessory right to use the property of another person.*

Much litigation has resulted because of poorly written easement descriptions. Writers often use conflicting words, not knowing what havoc they may create. One serious conflict occurs with the words each and either. The erroneous application can make a 50 foot wide easement a 100 foot width.

Such statements as “an easement deed” or “reserved for road purposes” cause the courts to wrestle with the legal consequences of what the creating individuals really meant when they wrote the ambiguous words. Since an easement grants the easement holder only the right to use the property and not to possess it, it has been held that an easement for ingress and regress, without additional rights, does not permit the parking of a vehicle and the permitting of the driver to walk on the land. Although many of these problems are legal problems and usually are not addressed by the surveyor, the surveyor should be sufficiently knowledgeable as to provide the client with help should such a situation occur.

Principle 17. *The creating words become important when there is a question as to what was created, what was vacated, and what was reverted to the landowners.*

Litigation is costly! Errors and problems in easements are abundant. Unscientific research indicates that for every boundary problem there are 10 easement problems that are addressed by the courts. Of these easement problems that are appealed, over one-half of the appellate courts reverse the trial court decision.

Although the surveyor should not practice law, he or she can be a member of the team. In most instances, easements are considered “after the fact.” In most instances, surveyors should become involved in the writing of descriptions, in what is described, in what is retained, and what is to be granted back. Every surveyor who writes property descriptions should become conversant in what words mean, how courts think, and what people want when they write a description for the boundaries of parcels of land.

Principle 18. *Easement boundaries may be either surface, subsurface, or aerial. The location may restrict the use by the servient titleholder.*

Since easements are incorporeal hereditaments—that is, for want of a better description, unable to be seen like the elements of real property—their identification places an additional burden on those professionals who attempt to locate them. Unlike trees or minerals, easement rights are not visible to the retracing surveyor. Because of the nature of easements, creating or retracing surveyors should keep a watchful eye for visible evidence of them that are not on the surface of the lot being surveyed. Easements can be described and located either on the ground surface, below the surface, or even above the surface of a lot. A long lineal depression across a lot, power poles on each side of a lot with wires overhead, or a badly overgrown rutted road winding its way across a parcel may all be indications to the surveyor of

prior rights, which may in turn indicate easement rights. The surveyor's responsibility is to indicate the evidence of the possible easement and not to offer legal decisions as to the easement's validity.

8.23 LITIGATING EASEMENTS

When a client decides to litigate, he or she, through the attorneys, must decide under what theory or theories to bring the action. The two usual avenues of litigating an easement dispute are law and equity. These are completely different and separate from each other. Two phrases that all attorneys learn early in their careers are:

Equity follows the law
And
When there is no possibility at law, equity may apply.

Equity denotes fairness, impartial justice by natural reasoning that is tried in a court of equity. Many states hold that easement questions are equitable questions.²⁶

The final decision as to the area in which the case should be tried is one for the attorney, not the surveyor, to determine.

8.24 CONCLUSIONS

Real property issues are not the typical strong suit of the average judge or practicing attorney. However, the practicing surveyor is placed in a position of expected knowledge in this area. Since many states permit the surveyor to write land and boundary descriptions, he or she should have a fundamental knowledge of the primary requirements for creating and describing not only land boundaries but boundaries of any real property interest, regardless of where the boundaries may be described—on the surface, above the surface, or underground—so as to limit or eliminate any possible problems the client/landowner may encounter now or in the future.

NOTES

1. O. W. A. Dilkie, *Greek and Roman Maps*, (Baltimore: Johns Hopkins University Press, 1985), 122. The modern term *highway* probably originated from the Roman practice of making the center portion of the road elevated (or higher) by adding bricks or gravel. At times, the road would be elevated as much as 2 feet in wet areas.
2. *Holloman v. Board of Education*, 147 S.E. 882 (Ga. 1928).
3. *Harrison v. Boring*, 44 Tex. 267 (Tex. 1855).